

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul Gamble, Department Advocate's Office, January 22, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29348 against Police Officer Luke Speranza, Tax Registry No. 965879. The case was conferenced on January 11 , 2024, before Assistant Deputy Commissioner of Trials Ann Stone, who approved the negotiated penalty of Command Discipline Schedule (B) forfeiture of Six (6) vacation days. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite, Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2023-29348BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, SPERANZA	FIRST LUKE	M.I. N	COMMAND DET SQD. BX-052
SHIELD NO. 11812	TAX REGISTRY NO. 965879	SOCIAL SECURITY NO.	DATE APPOINTED 04/25/2018	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Luke SPERANZA, on or about June 4, 2022, at approximately 2256, while assigned to 052 DET and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his/her authority as a member of the New York City Police Department, in that PO SPERANZA searched § 87(2)(b) recording device without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 6.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Luke SPERANZA, on or about June 4, 2022, at approximately 2256, while assigned to 052 DET and on duty, in the vicinity of § 87(2)(b) Bronx County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that PO SPERANZA entered § 87(2)(b) the Bronx without sufficient legal authority.	DISMISSED	

DC Barbino
FIRST DEPUTY COMMISSIONER

2/8/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

4/2/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner February 7, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29348 against Detective Luke Speranza, Tax No. 965879, with the recommendation that Detective Speranza receive a Schedule "B" Command Discipline and forfeit six (6) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc

DC Kinsella

Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

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APPROVED

APR 02 2024

Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER